

Athens, 29-01-2024

Ref. No.: 423

DECISION 2/2024

The Personal Data Protection Authority convened at the invitation of its President via teleconference on 23-01-2024, in order to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members Konstantinos Lamprinoudakis, Spyridon Vlachopoulos, Christos Kalloniatis, Aikaterini Iliadou, Grigorios Tsolias, and the alternate member Nikolaos Libos, who served as the rapporteur in place of the regular member Charalambos Anthopoulos, who, although duly summoned in writing, did not attend due to an impediment. Present without voting rights were Eleni Maragkou, legal expert, Georgia Panagopoulou, and Aikaterini Chatzidiakou, IT experts, as rapporteur assistants, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary. The Authority took into account the following:

As part of a broader initiative by the European Data Protection Board (hereinafter, EDPB), the Personal Data Protection Authority (hereinafter, the Authority), along with the majority of EDPB members, jointly undertakes the examination of a matter in a coordinated manner. For 2023, the EDPB decided to prioritize the topic "The definition and position of the Data Protection Officer." To this end, the EDPB developed a unified questionnaire regarding the definition and position of the Data Protection Officer (hereinafter, DPO), which the Authority adopted and sent to selected public entities. The Authority, as a participating member in this action, has additionally chosen to participate by exercising its investigative powers under Article 58 of the GDPR, in order to verify the definition and position of the DPO in the public sector in light of the existing legal obligation for the appointment of a DPO (Articles 37-39 of the GDPR and Articles 6-8 of Law 4624/2019).

The Authority's coordinated action group, consisting of experts E. Maragkou, G. Panagopoulou, and A. Chatzidiakou, sent the questionnaire to 31 public entities on 03-05-2023. Among them was the Ministry of Rural Development and Food (hereinafter, the data controller), to which the coordinated action group sent the questionnaire with reference number G/EXE/1101/03-05-2023, with a submission deadline via the EUsurvey link on 19-05-2023. The data controller did not respond to the aforementioned document. The Authority resent the questionnaire to the data controller with reference number G/EXE/1347/26-05-2023, in which the data controller was again invited to respond by 31-05-2023. The data controller did not respond despite phone calls made by a member of the coordinated action group. During these communications, it was revealed that at that time the data controller was in the process of searching for a DPO or renewing the DPO's contract. According to the DPO registry maintained by the Authority, the data controller submitted the communication details of the DPO under reference number G/EIS/6655/14-10-2021, as required under Article 37 paragraphs 1 and 7.

Subsequently, after the Authority examined the case file, it sent the reference number G/EXE/3019/28-11-2023 summons to the data controller in order to discuss the case before the Plenary of the Authority on Tuesday, December 19, 2023. Following the receipt of the summons to the Plenary of the Authority, the data controller sent the Authority the reference number G/EIS/8942/15-12-2023 memorandum, in which it is stated, on the one hand, that the term of the previous DPO had expired on 04-08-2022, and on the other hand, that it had not been renewed due to a lack of necessary funding. Ultimately, a service assignment contract for the DPO was approved and signed on 20-06-2023 for a duration of two (2) years. For the interim period during which there was no designated DPO, it is stated that there was a plan for the protection and security of personal data and that the data subjects did not suffer any harm. Furthermore, during the entire public authority or body.

Claims of the data controller, from the above response, indirectly reveal the answers to the aforementioned questionnaire, such as the description of the role, duties, experience, and professional qualifications of the DPO. Finally, the data controller asserts in its memorandum that an employee of the Directorate of Administrative Organization and Supervision of Legal Entities of the data controller,

after receiving the second letter on 26-05-2023, promptly proceeded to complete and submit the questionnaire, which, however, could not be accomplished due to a technical error.

In the said meeting, which was held in person, present on behalf of the data controller were: Thomais Kourtesi, Legal Council of the State with AMNS, A ... of the Directorate of Administrative Organization and Supervision of Legal Entities of the Ministry, and B, who performs the duties of DPO of the data controller, in order to provide clarifications on the case. Subsequently, as requested during the meeting, the data controller submitted the memorandum No. Αρχής Γ/ΕΙΣ/9046/20-12-2023 with the completed questionnaire.

The Authority, after examining the elements of the file and what emerged from the hearing before it and the memoranda of the data controller, along with their supplementary documents, having heard the rapporteur and the clarifications from the assistant rapporteurs, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, from the provisions of Articles 51 and 55 of the GDPR and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data and to exercise the powers assigned to it under the aforementioned regulation.

2. Since according to the definitions of Article 58 of the GDPR “1. Each supervisory authority shall have all of the following investigative powers: a) to order the data controller and the processor and, where applicable, the representative of the data controller or the processor to provide any information it requires for the performance of its tasks, b) to conduct investigations in the form of checks for the protection of data,... d) to notify the data controller or the processor of an alleged infringement of this regulation, e) to obtain, from the data controller and the processor, access to all personal data and all information necessary for the performance of its tasks...”.

3. Since according to the definitions of Articles 13 and 15 of Law 4624/2019 it is provided that: “1. In addition to the duties under Article 57 of the GDPR, the Authority: ...h) conducts investigations or checks ex officio or following a complaint for the application of this law and other regulations concerning the protection of individuals against the processing of personal data, among others based on information from another public authority...” and “1. In addition to the powers provided for in Article 58 of the GDPR, the Authority conducts investigations and checks ex officio or following a complaint regarding compliance with this law, within which the technological infrastructure and other automated or non-automated means supporting the processing of personal data are checked. In conducting investigations and checks, the Authority has the power to obtain from the data controller and the processor access to all personal data that is subject to processing and all information necessary for the purposes of the relevant check and the performance of its tasks, without any kind of confidentiality being able to be invoked against it...”.

4. Since according to the definitions of Article 31 of the GDPR: “The data controller and the processor, and where applicable, their representatives shall cooperate, upon request, with the supervisory authority in the performance of its tasks.”

5. Since according to the definitions of Article 37 of the GDPR: “1. The data controller and the processor shall designate a data protection officer in each case where: a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity,... 3. If the data controller or the processor is a public authority or public body, a single data protection officer may be designated for the entire public authority or body.”

many such principles or many such entities, taking into account their organizational structure and size... 5. The data protection officer is appointed based on professional qualifications and, in particular, based on the expertise they possess in the field of law and data protection practices, as well as their ability to fulfill the duties referred to in Article 39. 6. The data protection officer may be a

member of the staff of the data controller or the processor or may perform their duties under a service contract. 7. The data controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority.

6. Since according to the definitions of Article 38 of the GDPR "1. The data controller and the processor ensure that the data protection officer is involved, properly and in a timely manner, in all issues related to the protection of personal data. 2. The data controller and the processor support the data protection officer in the performance of the tasks referred to in Article 39 by providing necessary resources for the performance of those tasks and access to personal data and processing operations, as well as resources necessary to maintain their expertise. 3. The data controller and the processor ensure that the data protection officer does not receive instructions regarding the performance of those tasks. They are not dismissed or subjected to penalties by the data controller or the processor for having performed their duties. The data protection officer reports directly to the highest management level of the data controller or the processor. 4. Data subjects may contact the data protection officer regarding any issues related to the processing of their personal data and the exercise of their rights under this regulation. 5. The data protection officer is bound by the obligation of confidentiality or secrecy regarding the performance of their duties, in accordance with Union or Member State law. 6. The data protection officer may also perform other tasks and obligations. The data controller or the processor ensure that these tasks and obligations do not lead to a conflict of interest."

7. Since according to the definitions of Article 39 of the GDPR: "1. The data protection officer has at least the following tasks: a) to inform and advise the data controller or the processor and the employees who process their obligations arising from this regulation and from other provisions of Union or Member State law regarding data protection, b) to monitor compliance with this regulation, with other provisions of Union or Member State law regarding data protection and with the policies of the data controller or the processor in relation to the protection of personal data, including the assignment of responsibilities, awareness-raising and training of staff involved in processing operations, and related audits, c) to provide advice, when requested, regarding the data protection impact assessment and to monitor its implementation in accordance with Article 35, d) to cooperate with the supervisory authority, e) to act as a contact point for the supervisory authority on issues related to processing, including prior consultation referred to in Article 36, and to consult, as appropriate, on any other matter. 2. In the performance of their duties, the data protection officer takes due account of the risks associated with processing operations, considering the nature, scope, context, and purposes of the processing."

8. In this case, from the evidence in the case file, it appears that the data controller did not timely submit the aforementioned questionnaire while also failing to communicate with the Authority during the critical period in which, according to their claim, it was technically impossible to submit the completed questionnaire, nor did they do so subsequently to inform the Authority accordingly. This claim was only made during the presence of the data controller at the plenary session of the Authority. Furthermore, it was found that for the period from 04-08-2022 to 20-06-2023, the data controller had not appointed a DPO.

9. Therefore, based on the above, the Authority finds the following violations for the Ministry of Rural Development and Food:

- a. Violation of Article 31 regarding the cooperation of the data controller with the Authority.
- b. Violation of Article 37 regarding the non-appointment of a DPO for the period from 04-08-2022 to 20-06-2023.

10. Based on the above, the Authority deems that there is a case for exercising its corrective powers under Article 58(2) of the GDPR and imposing an administrative sanction in relation to the identified violations.

11. The Authority further considers that, based on the violations identified, an effective, proportionate, and deterrent administrative monetary fine should be imposed, in accordance with the provisions of Article 58(2)(h) of the GDPR, Articles 83 of the GDPR, and Article 39 of Law 4624/2019, on the data controller.

12. Furthermore, the Authority took into account the criteria for determining the fine set out in Article 83(2) of the GDPR, paragraphs 4 and 5 of the same article applicable to the present case, Article 39(1) and (2) of Law 4624 concerning the imposition of administrative sanctions on public sector entities, and the Guidelines 04/2022 of the European Data Protection Board for the calculation of administrative fines under the GDPR, which were approved on 24/05/2023, as well as the factual data of the case under examination, and in particular the following:

- i) The fact that the data controller, as a public entity, had not appointed a DPO for a certain period, despite the obligation to do so, and indeed for a long period.
- ii) The fact that there is no material harm to the data subjects, as well as that the number of potentially affected data subjects cannot be ascertained.
- iii) The fact that the data controller exhibited difficulty in cooperating with the Authority, failing to provide the requested information in a timely manner.
- iv) The fact that although belatedly, the data controller submitted the above questionnaire.
- v) The fact that no previous similar violation has been identified from the data controller.
- vi) The fact that a contract for the appointment of a DPO with a two-year term (2023 - 2024) has already been signed by the data controller.

The Authority deems that, based on the identified violations, the sanction referred to in the operative part of the decision is the effective, proportionate, and deterrent measure both for restoring compliance and for punishing the unlawful behavior.

FOR THESE REASONS

The Authority, taking into account the above:

- a) Imposes, based on Article 58(2)(h) of the GDPR, an administrative fine on the Ministry of Rural Development and Food in the total amount of 5,000 euros, for the violation of Article 31 of Regulation (EU) 2016/679,
- b) Imposes, based on Article 58(2)(h) of the GDPR, an administrative fine on the Ministry of Rural Development and Food in the total amount of 20,000 euros, for the violation of Article 37 of Regulation (EU) 2016/679.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou